MASTER SOFTWARE SERVICES AND DATA PROCESSING AGREEMENT

Agreement Date: 15 September 2026 **Agreement ID:** MSA-2026-0915-47

This Master Software Services and Data Processing Agreement (the “Agreement”) is entered into by and between **Northstar Analytics Pvt. Ltd.**, a company incorporated under the laws of India, with its principal office at Bengaluru, Karnataka (“Customer”), and **Meridian Cloud Systems Pvt. Ltd.**, a company incorporated under the laws of India, with its principal office at Hyderabad, Telangana (“Provider”). Customer and Provider are each a “Party” and together the “Parties.”

1. DEFINITIONS

1.1 Confidential Information means non-public business, technical, financial, customer, security, product, pricing, and operational information disclosed by either Party, whether marked confidential or whether a reasonable person would understand the information to be confidential.

1.2 Customer Data means all information submitted to the Services by Customer or on Customer’s behalf, including personal information, documents, source material, usage information, and audit records.

1.3 Services means the hosted analytics, document processing, reporting, API access, and related support services described in this Agreement and its Schedules.

2. SERVICES AND SERVICE LEVELS

2.1 Provider shall provide the Services substantially in accordance with Schedule A. Provider may modify non-material features from time to time, provided that such modification does not materially reduce the core functionality of the Services.

2.2 Provider will use commercially reasonable efforts to maintain 99.5% monthly availability, excluding scheduled maintenance, emergency maintenance, force majeure events, failures caused by Customer, and third-party services outside Provider’s reasonable control.

2.3 Scheduled maintenance will normally be communicated at least 24 hours in advance. Emergency maintenance may occur without prior notice where Provider reasonably believes that delay would create a security or operational risk.

3. FEES AND PAYMENT

Service Tier	Included Usage	Monthly Fee	Overage
Standard	Up to 10,000 documents	■85,000	■12 / document
Professional	Up to 50,000 documents	■2,40,000	■8 / document
Enterprise	Up to 150,000 documents	■5,50,000	■5 / document

3.1 Invoices are payable within 30 days of receipt. Undisputed late amounts may accrue interest at 1.5% per month or the maximum rate permitted by applicable law, whichever is lower.

3.2 Provider may suspend access for invoices more than 15 days overdue after providing Customer with at least 7 days’ written notice and an opportunity to cure.

4. DATA PROCESSING AND SECURITY

4.1 Provider shall process Customer Data only to provide, secure, maintain, and improve the Services and to comply with applicable law. Provider shall implement reasonable administrative, technical, and physical safeguards

appropriate to the nature of the data processed.

4.2 Provider may use subcontractors to process Customer Data. Provider remains responsible for the acts and omissions of its subcontractors to the same extent as if those acts or omissions were performed by Provider.

4.3 Provider shall notify Customer without undue delay after confirming a Security Incident involving unauthorized access to Customer Data and shall provide reasonably available information concerning the nature and scope of the incident.

4.4 Provider may retain backup copies of Customer Data for up to 180 days after deletion from production systems, provided such copies remain protected and are not restored except for disaster recovery purposes.

5. CONFIDENTIALITY

5.1 Each Party shall protect the other Party’s Confidential Information using at least reasonable care and shall use such information only to perform or receive rights under this Agreement.

5.2 The confidentiality obligations do not apply to information that the receiving Party can demonstrate was already lawfully known, becomes public without breach, is independently developed, or is lawfully received from a third party without a duty of confidentiality.

5.3 If disclosure is required by law, the receiving Party shall, where legally permitted, provide prompt notice and reasonable cooperation so the disclosing Party may seek protective relief.

6. INTELLECTUAL PROPERTY

6.1 Customer retains all right, title, and interest in Customer Data. Provider retains all right, title, and interest in the Services, software, models, templates, documentation, and Provider-developed technology.

6.2 Subject to payment of all applicable fees, Provider grants Customer a non-exclusive, non-transferable, worldwide license during the Term to use the Services for Customer’s internal business operations.

6.3 Feedback provided by Customer may be used by Provider to improve its products and services, provided Provider does not disclose Customer Confidential Information in doing so.

7. WARRANTIES

7.1 Each Party represents that it has authority to enter into this Agreement. Provider warrants that the Services will materially conform to the applicable documentation during the Term.

7.2 Except as expressly stated in this Agreement, the Services are provided on an “as available” basis and Provider disclaims all other warranties to the maximum extent permitted by law.

8. INDEMNIFICATION

8.1 Provider shall defend Customer against a third-party claim alleging that the Services, when used as permitted by this Agreement, infringe a third party’s registered intellectual property right, and shall pay damages finally awarded or settlements approved by Provider.

8.2 Customer shall defend Provider against third-party claims arising from Customer Data or Customer’s unlawful use of the Services, and shall pay damages finally awarded or settlements approved by Customer.

8.3 The indemnified Party shall promptly notify the indemnifying Party of a claim and provide reasonable cooperation. The indemnifying Party shall control the defense, provided it may not settle a claim in a manner that admits liability or imposes non-monetary obligations on the indemnified Party without consent.

9. LIMITATION OF LIABILITY

9.1 TO THE MAXIMUM EXTENT PERMITTED BY LAW, NEITHER PARTY SHALL BE LIABLE FOR INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, EXEMPLARY, OR PUNITIVE DAMAGES, OR FOR LOST PROFITS, REVENUE, OR DATA.

9.2 EXCEPT FOR CUSTOMER’S PAYMENT OBLIGATIONS, EACH PARTY’S AGGREGATE LIABILITY ARISING OUT OF OR RELATING TO THIS AGREEMENT SHALL NOT EXCEED THE FEES PAID OR PAYABLE BY CUSTOMER TO PROVIDER DURING THE THREE MONTHS PRECEDING THE EVENT GIVING RISE TO THE CLAIM.

9.3 The limitations in Sections 9.1 and 9.2 shall not apply to fraud, willful misconduct, or a Party’s indemnification obligations under Section 8.

10. TERMINATION

10.1 Either Party may terminate this Agreement for material breach if the breach remains uncured for 30 days after written notice describing the breach.

10.2 Either Party may terminate immediately upon written notice if the other Party becomes insolvent, enters liquidation, or ceases substantially all business operations.

10.3 Provider may terminate this Agreement for convenience at any time upon 15 days’ written notice to Customer.

10.4 Customer may terminate for convenience only after the first 12 months of the Term and upon 60 days’ written notice.

11. NON-SOLICITATION

11.1 During the Term and for 24 months thereafter, Customer shall not directly or indirectly solicit for employment any employee of Provider who materially participated in delivering the Services. This restriction shall not apply to general advertisements not specifically targeted at Provider employees.

12. GOVERNING LAW AND DISPUTES

12.1 This Agreement shall be governed by the laws of India, without regard to conflict-of-law principles.

12.2 The Parties shall first attempt in good faith to resolve disputes through executive-level negotiation. If a dispute is not resolved within 30 days, it shall be finally resolved by arbitration in Bengaluru, India, by a sole arbitrator

appointed in accordance with applicable arbitration law.

13. NOTICES

Notices under this Agreement must be in writing and delivered by courier, registered post, or email to the addresses specified below. Email notices are effective upon confirmation of transmission, provided no delivery failure notice is received.

Party	Email	Address
Customer	legal@northstaranalytics.example	Bengaluru, Karnataka, India
Provider	contracts@meridiancloud.example	Hyderabad, Telangana, India

14. TERM AND RENEWAL

14.1 The initial Term begins on the Agreement Date and continues for 24 months.

14.2 Unless either Party gives written notice of non-renewal at least 90 days before expiration, the Agreement will automatically renew for successive 12-month periods.

15. FORCE MAJEURE

Neither Party shall be liable for delay or failure to perform caused by events beyond its reasonable control, including natural disasters, war, terrorism, government action, widespread internet failures, or labor disruptions, provided that the affected Party uses reasonable efforts to mitigate the effects.

16. ASSIGNMENT

Neither Party may assign this Agreement without the other Party's prior written consent, except that either Party may assign the Agreement without consent to an affiliate or in connection with a merger, acquisition, corporate reorganization, or sale of substantially all assets, provided the assignee assumes the assigning Party's obligations.

17. ORDER OF PRECEDENCE

If there is a conflict between this Agreement and a Schedule, the following order of precedence applies: (1) the applicable Data Processing Addendum, (2) the applicable Order Form, (3) this Agreement, and (4) all other Schedules, unless the conflicting document expressly identifies the provision of this Agreement that it overrides.

18. AUDIT RIGHTS

Customer may, no more than once per calendar year and upon 20 business days' prior written notice, audit Provider's compliance with the security obligations in Section 4. Provider may satisfy the request by providing an independent third-party security report where reasonably sufficient to address the requested controls.

19. PUBLICITY

Provider may identify Customer by name and logo as a customer in Provider's website, presentations, and marketing materials without obtaining additional approval from Customer.

20. GENERAL

This Agreement, together with its Schedules and Order Forms, constitutes the entire agreement between the Parties concerning its subject matter and supersedes prior discussions relating to that subject matter. Any amendment must be in writing and signed by authorized representatives of both Parties. If any provision is held unenforceable, the remaining provisions remain effective. A waiver must be in writing and applies only to the specific instance for which it is given.

SIGNATURES

For Northstar Analytics Pvt. Ltd.	**For Meridian Cloud Systems Pvt. Ltd.**
Name: _____	Name: _____
Title: _____	Title: _____
Date: _____	Date: _____
Signature: _____	Signature: _____

Testing note: This document is synthetic and intended solely for testing the Enterprise Auditor pipeline. It contains deliberately varied clause structures, tables, cross-references, asymmetric termination rights, broad publicity language, data-retention provisions, and other patterns useful for evaluating extraction, retrieval, risk detection, evidence grounding, verification, and knowledge-graph construction.